



IN THE HIGH COURT OF PUNJAB AND HARYANA
AT CHANDIGARH

CWP No.19066 of 2026
DATE OF DECISION : 9th JUNE, 2026

Pawan Kumar Sarpanch

.... Petitioner

Versus

State of Haryana & others

.... Respondents

CORAM : HON'BLE MR. JUSTICE ROHIT KAPOOR

* * * *

Present : Mr. Jasmer Singh Rozera, Advocate for the petitioner.

Mr. Praveen Kumar, DAG, Haryana.

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ROHIT KAPOOR, J. (Oral)

1. The instant petition has been filed under Articles 226/227 of the Constitution of India for quashing of order dated 20.05.2026 (Annexure P-7) passed by respondent No.2-Commissioner, Karnal whereby operation of the order dated 20.03.2026 (Annexure P-5) passed by respondent No.3-Deputy Commissioner, Karnal reinstating the petitioner to the elected office of Sarpanch, Gram Panchayat Mundh, has been stayed.

2. At the very outset, learned counsel for the petitioner has informed the Court that the petitioner has already approached the appellate authority by way of application for preponing the date fixed and has also sought vacation of stay, which is now fixed for 26.06.2026. The counsel for the petitioner has drawn the attention of the Court to the communication dated 02.06.2026 (Annexure P-8) issued by the BDPO, Asandh, whereby the special meeting of the Gram Panchayat has been convened to select a Panch by way of majority.



3. Learned counsel has relied upon the judgment of the Coordinate Bench of this court in the case of *Suryadeep Vs. Financial Commissioner Panchayat and Rural Development-cum-Additional Chief Secretary, Panchayati Raj Department and others* passed in CWP No. 22790 of 2020 decided on 06.01.2021 wherein in identical circumstances the authority was directed to hear the application for interim relief in the appeal and dispose of the same in a time bound manner. Pending such consideration, the suspension order was directed to be kept in abeyance.

4. For the nature of relief being granted in the present petition, no notice is required to be issued to the private respondent No.5 at this stage.

5. Notice of motion to respondents No.1 to 4 only. On the asking of the Court, learned State counsel accepts notice on their behalf.

6. In view of the undisputed position that the petitioner's application for vacation of stay is pending for 26.06.2026, this Court would be loathe to step into the shoes of the appellate authority and examine the merits including the validity of the suspension order, given the scheme of the statute and the efficacious alternate remedy provided thereunder. However, keeping in view the peculiar facts and circumstances, this Court deems it appropriate to dispose of the present petition with a direction to the appellate authority to decide the application of the petitioner as expeditiously as possible and preferably on the next date of hearing. Till such time the application is decided finally, the suspension order dated 20.05.2026 (Annexure P-7) shall be



kept in abeyance and shall abide by the orders passed by the Appellate Authority.

7. It is made clear that this Court has not gone into the merits of the matter and it is ultimately upon the respondent No.2-Commissioner, Karnal to independently examine the merits of the application as well as the appeal and to take an appropriate reasoned decision thereupon.

8. Accordingly, the petition stands disposed of with the above direction.

9th June, 2026
'raj'

(ROHIT KAPOOR)
JUDGE

<i>Whether speaking/reasoned:</i>	<i>Yes</i>	<i>No</i>
<i>Whether Reportable:</i>	<i>Yes</i>	<i>No</i>